

23STCV11038 23STCV11038

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-09

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Case Number: 23STCV11038 Hearing Date: September 9, 2026 Dept: 510

No.

7 - Otto Perdomo v. County of Los Angeles

Plaintiff Otto Perdomo's Motion to

Enforce Settlement Agreement

Plaintiff

Otto Perdomo moves to enforce his settlement agreement and enter judgment against Defendant County of Los Angeles.

Entry

of Judgment

Plaintiff

shows sufficient grounds to enter judgment of \$46,746.55 against Defendant. Code of Civil Procedure section 664.6, subdivision (a) provides in relevant part, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court... for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

The

parties entered a written agreement to settle the action. (Slaughter Decl., ¶ 3, Ex. 1 ("Settlement Agreement").) The agreement was signed by Plaintiff in April 2025, and Defendant in May 2025. (Id., at p. 7.) The agreement requires Defendant to pay 21 months of backpay at a monthly salary of \$6,540 (Settlement Agreement, ¶ 1(b).) It also requires Defendant to reimburse any out-of-pocket expenses incurred after September 2022 for cafeteria plan benefits; Plaintiff was

required to submit any applicable receipts for reimbursement. (Id., ¶ 1(b)(i).)

Here,

Plaintiff submitted all required documentation in 2025. (Slaughter Decl., ¶ 9.) While Defense counsel informed Plaintiff's counsel in May 2026 that the County mailed the payment via certified mail, Plaintiff did not receive it. (Id., ¶¶ 14-15.) Defendant now admits that the payment was never sent; there was a processing error, and the County is working to rectify the issue. (Flores Decl., ¶ 14.) Therefore, Defendant breached the agreement when it failed to timely pay the outstanding backpay and benefit amounts, as contemplated in the parties' settlement agreement.

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Settlement Agreement provides that if any party breached the agreement, the Court retained jurisdiction to enforce its terms under Code of Civil Procedure section 664.6. (Settlement Agreement, ¶ 11.) The Court will enter judgment against Defendant for the remaining amount due to Plaintiff.

The

Court notes that the parties dispute whether Plaintiff properly resigned from the County as required by the settlement agreement. Whether Plaintiff independently breached the agreement due to the way he resigned has no apparent bearing on the County's payment obligations to him now. Defendant concedes as much in its brief. Therefore, the Court will not analyze this issue.

Attorney

Fees

Plaintiff

requests \$4,950 in attorney fees for bringing this motion to enforce settlement. (Slaughter Decl., ¶ 20.) The Court declines to award attorney fees. The settlement agreement does not contain an attorney fee provision, and the Court declines to add one. "Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement." (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182 [emphasis added].)

Disposition

Plaintiff Otto Perdomo's motion to
enforce settlement agreement is granted. Plaintiff is to submit a
proposed judgment forthwith.